

the land from third parties at a cost of over \$700,000, thus leaving him no choice but to pay the fine, the court refused to alter this order. App. 107a-108a. The court also granted separate injunctive relief: it ordered the restoration of wetlands on the portions of Mire Pond and Eel Creek still owned by petitioner, 615 F. Supp., at 627, and further ordered the removal of fillings on five lots of the Ocean Breeze Mobile Home Sites unless petitioner were granted an "after-the-fact permit" validating the fillings. *Id.*, at 626.

The Court of Appeals affirmed over a dissent, rejecting petitioner's argument that, under the Seventh Amendment, he was entitled to a jury trial. 769 F. 2d 182 (CA4 1985). The court expressly declined to follow the decision of the Court of Appeals for the Second Circuit in *United States v. J. B. Williams Co.*, 498 F. 2d 414 (1974), which held that there was a Seventh Amendment "'right of jury trial when the United States sues . . . to collect a [statutory civil] penalty, even though the statute is silent on the right of jury trial.'" 498 F. 2d, at 422-423 (quoting 5 J. Moore, *Federal Practice* ¶38.-31[1], pp. 232-233 (2d ed. 1971)). The Court of Appeals in this case also found unpersuasive the dictum in *Hepner v. United States*, 213 U. S. 103, 115 (1909), and in *United States v. Regan*, 232 U. S. 37, 46-47 (1914), that the Seventh Amendment's guarantee applies to civil actions to collect a civil penalty. The court concluded that, while in *Hepner* and *Regan* the civil penalties were statutorily prescribed fixed amounts, the District Court in the present case exercised "statutorily conferred equitable power in determining the amount of the fine." 769 F. 2d, at 187. The Court of Appeals also noted that the District Court fashioned a "'package' of remedies" containing both equitable and legal relief with "one part of the package affecting assessment of the others." *Ibid.*

In *Atlas Roofing Co. v. Occupational Safety and Health Review Comm'n*, 430 U. S. 442, 449, n. 6 (1977), we explicitly declined to decide whether the dictum of *Hepner* and